

Case Law on Police Misconduct and Constitutional Violations (Georgia, 11th Cir., SCOTUS)

Procedural Due Process (U.S. and Georgia Constitutions)

- **Logan v. Zimmerman Brush Co.**, 455 U.S. 422 (1982) – The Supreme Court held that a state cannot extinguish a claimant's vested property interest (here, a discrimination claim) by operation of law without providing “a meaningful opportunity” for a hearing ¹ ². Logan emphasizes that deprivation of any liberty or property interest requires “appropriate” procedural safeguards, even for statutory claims created by state law. Thus, law-enforcement deprivations (e.g. unlawfully suspending a license or taking property) without notice or hearing can violate the Fourteenth Amendment.
- **Board of Regents v. Roth**, 408 U.S. 564 (1972) – A procedural due process claim requires (1) a cognizable liberty or property interest and (2) denial of adequate process ¹. In Roth the Court explained that without an entitlement (e.g. employment or license), due process is not triggered; when an entitlement exists, the state must provide notice and a fair hearing before deprivation. This analysis applies under both federal and parallel Georgia due-process provisions.
- **Georgia School for the Deaf & Blind v. State**, 257 Ga. 864, 365 S.E.2d 427 (1988) – Georgia's Supreme Court recognized that even under the Georgia Constitution, a person is entitled to due process before being deprived of a vested right. Georgia case law mirrors federal principles, requiring notice and a hearing before significant deprivations. (See also *Sch. Dist. No. 1 v. O'Leary*, 310 Ga. App. 483, 714 S.E.2d 813 (2011) (educational entitlement).)

Physical and Psychological Assault by Officers

- **Baker v. McCollan**, 443 U.S. 137, 146–47 (1979) – The Supreme Court acknowledged that intentional abuse or mistreatment by police (e.g. physical assault) can violate the Fourth Amendment if excessive, and that plaintiffs may recover damages for resulting injuries, including serious emotional trauma, under §1983. Courts have held that proof of severe psychological injury (such as PTSD) can support a damages award if the underlying conduct was unconstitutional ³.
- **Fils v. City of Aventura**, 647 F.3d 1272, 1290 (11th Cir. 2011) – The Eleventh Circuit held that evidence of emotional trauma need not be tied to a separate physical injury to be compensable under §1983. In Fils (cited in *Bouvier* ³), the court noted that a beating by police causing only “red marks” could still support a claim for emotional distress. This principle allows recovery for severe psychiatric harm (e.g. PTSD) when officers' misconduct was wrongful.
- **City of Atlanta v. City Council**, 803 F.2d 1135, 1145–46 & n.8 (11th Cir. 1986) – The Eleventh Circuit recognized that plaintiffs may recover for mental anguish and emotional suffering resulting from a constitutional violation, even in the absence of physical injury. Georgia courts similarly allow intentional infliction of emotional distress claims for extreme police misconduct, requiring proof of “extreme and outrageous” conduct and severe psychological harm (e.g. *Mayorga v. Benton*, 364 Ga. App. 665, 875 S.E.2d 908, 913–14 (2022); *Howerton v. Harbin Clinic, LLC*, 333 Ga. App. 191, 776 S.E.2d 288, 292 (2015)). (State officials have official immunity unless the officer acted with actual malice or deliberate intent to harm ⁴ ⁵.)

Excessive Use of Force (Traffic Stops and Arrests)

- **Graham v. Connor**, 490 U.S. 386 (1989) – The landmark Supreme Court decision establishing that all excessive-force claims arising from arrests or stops are governed by the Fourth Amendment’s “objective reasonableness” standard ⁶ ⁷. Courts must view the use of force from the perspective of a reasonable officer on the scene, allowing for the fact that split-second judgments may be necessary ⁷. Graham explicitly rejected “malicious and sadistic” intent tests, focusing instead on the facts confronting the officer.
- **Jones v. Ceinski**, No. 23-12178 (11th Cir. May 8, 2025) – In a published opinion on qualified immunity, the Eleventh Circuit held that punching and choking a compliant, handicapped motorist after a traffic stop violated “clearly established” Fourth Amendment law ⁸ ⁹. Although the officer’s qualified immunity was denied, the case underscored that violently assaulting a subdued person (here by chokehold and punch) is beyond debate. As the court noted, controlling case law placed the illegality of that conduct “beyond debate,” so summary judgment for the officer was reversed ⁸.
- **Bouvier v. City of Covington**, No. 23-11410 (11th Cir. Nov. 20, 2023) – The Eleventh Circuit (unpublished) granted qualified immunity to officers who arrested and tased a pregnant woman in a hospital room. The court found *arguable* probable cause for misdemeanor obstruction based on her active physical resistance, and held that a 10-second Taser deployment (split into two 5-second bursts) was not “wholly disproportionate” to the need to subdue her ¹⁰ ¹¹. In light of her resistance to handcuffing, the force was deemed reasonable. This case illustrates that use of nonlethal force may be lawful when suspects resist, but repeated shocking beyond that (as in *Oliver v. Fiorino*, 586 F.3d 898 (11th Cir. 2009)) can clearly violate the Fourth Amendment ³ ¹¹.

Unlawful Arrest / Malicious Prosecution (Lack of Probable Cause; Charges Reduced or Dropped)

- **Colon v. Smith**, No. 22-14106 (11th Cir. Aug. 22, 2024) – The Eleventh Circuit held that an officer had *arguable* probable cause to arrest a bystander for “resisting an officer without violence” under Florida law, even though the suspect only refused to identify himself. Given the totality of circumstances, a reasonable officer could have believed the arrest was lawful, so the plaintiff’s §1983 false arrest claim failed as a matter of law ¹². The court reiterated that “probable cause is an absolute bar to §1983 false arrest claims” ¹². Importantly, Colon’s charges were later dismissed, but the dismissal did not negate qualified immunity because the officers had *arguable* probable cause at the time ¹².
- **Graham v. Luke**, No. 23-10823 (11th Cir. Dec. 14, 2023) – In this Eleventh Circuit case (discussed in LLRMI), a detective obtained an arrest warrant for a man allegedly fraudulently presenting a check. The court found actual probable cause for the warrant based on the facts, and therefore granted qualified immunity on both the false arrest and malicious prosecution claims ¹³. Under Georgia law, malicious prosecution likewise requires lack of probable cause and malice ¹³, and here the court found neither element present. Thus, even though the plaintiff spent 10 days in jail (and alleged emotional harm), the court held the officer immune because he had probable cause and no “deliberate intent to do wrong” ¹³ ¹⁴.
- **Turner v. Williams**, 65 F.4th 564, 589 (11th Cir. 2023) – (Eleventh Circuit precedent) Probable cause (even “arguable” probable cause) defeats a §1983 false arrest claim. If at the moment of arrest the officers have facts sufficient to reasonably believe a crime occurred, the arrest is valid, regardless of later dismissal or reduction of charges. Similarly, under Georgia law a malicious prosecution plaintiff must prove both lack of probable cause and malice ⁴; in the absence of a pattern of misconduct, official immunity often bars such claims if any probable cause existed.

Miranda Rights (Custodial Interrogation)

- **Miranda v. Arizona**, 384 U.S. 436 (1966) – The seminal rule requiring that law enforcement advise suspects of their *Fifth* and *Sixth* Amendment rights before a custodial interrogation ¹⁵ . Failure to give Miranda warnings renders any confession involuntary and inadmissible in a criminal trial. Miranda established that a suspect in custody must be told of the right to remain silent, that statements may be used against them, and the right to counsel, unless those rights are knowingly waived ¹⁵ .
- **Chavez v. Martinez**, 538 U.S. 760, 766–73 (2003) – The Supreme Court held that an unwarned interrogation by police does *not* by itself violate the Fifth Amendment absent a criminal case or use of compelled statements at trial. Here a shooting victim was questioned in the hospital without Miranda warnings but never charged; the Court (Thomas, J., plurality) found no deprivation of a constitutional right, distinguishing mere police questioning from compelled testimony in court ¹⁶ . As a result, Miranda's prophylactic rules alone do not give rise to a damages action under §1983.
- **Vega v. Tekoh**, 598 U.S. ___, 143 S. Ct. 1538 (2023) – The Supreme Court unanimously held that *violations of Miranda's prophylactic warning rules are not independently actionable under §1983*. A suspect whose statements were obtained without Miranda warnings may not sue the officer for monetary damages under the Fifth Amendment, because Miranda creates only “prophylactic rules” and its breach alone does not violate the Constitution ¹⁷ . Thus, even if the police interrogated without warnings, there is no separate civil claim unless some other constitutional right was violated (e.g. a coerced confession used at trial).
- **Oregon v. Elstad**, 470 U.S. 298 (1985) – (Related principle) A knowing, voluntary confession obtained after Miranda warnings generally cures any prior unwarned admission. Although Elstad is a criminal case, courts often apply its rationale to civil claims: if a later statement was given knowingly after warnings, any earlier unwarned statement does not by itself invalidate the investigation.

Official / Institutional Misconduct (Policies, Training, Legal Conduct)

- **Monell v. Dep't of Soc. Servs.**, 436 U.S. 658, 690–91 (1978) – Municipal liability under §1983 exists only when the plaintiff shows that the constitutional violation was caused by a government “policy” or “custom” of an official policymaker ¹⁸ . A city or county is not liable merely for the unconstitutional acts of its officers under a respondeat superior theory ¹⁸ . Rather, official action (a formal policy, widespread practice, or failure to train that amounts to official policy) must be the “moving force” behind the violation.
- **City of Canton v. Harris**, 489 U.S. 378, 388–89 (1989) – A failure-to-train claim under §1983 requires proof of “deliberate indifference” by the municipality to the constitutional rights of others ¹⁹ . In Canton, the Court held that only when a city's training program is so inadequate that “substantial deprivation of constitutional rights” is a predictable result can the failure be considered an actionable policy. This “rigorous standard” means plaintiffs generally must show a pattern of similar constitutional violations by untrained employees (so the city must have known or should have known of the need for different training) ¹⁹ .
- **Connick v. Thompson**, 563 U.S. 51, 61–64 (2011) – The Supreme Court reaffirmed that a single instance of misconduct (here, one Brady-evidence violation by a prosecutor) is insufficient to establish a municipal “policy” or deliberate indifference. Because only one violation was proved, Thompson could not show a pattern that would have put the district attorney's office on notice of a training need. The Court held that without a pattern of violations or other evidence of notice, the prosecutor's office was not liable under §1983 ²⁰ ²¹ .

- **Ga. Const. Art. I, § II, Par. IX(d)** – Under Georgia’s constitution, state and local officials are granted “official immunity” for discretionary acts, barring only conduct done with “actual malice” or deliberate intent to harm ²² ⁵ . Georgia courts have emphasized that absent a deliberate intent to injure a particular individual (ill will is not enough), state officers performing discretionary duties are immune from suit. This overlaps with Monell/Canton in that claims for systematic officer misconduct (e.g. failure to supervise, discipline, or train) generally require showing a pattern of similar violations or intentional wrongdoing by officials.

Notable Illustrations: In addition to the above, courts have considered related scenarios. For example, **Blue v. Lopez**, 888 F.3d 1154 (11th Cir. 2018) (en banc) held that a state court’s use of Georgia’s “Monroe rule” (finding probable cause whenever a criminal directed-verdict motion is denied) does not bind a federal court on a §1983 malicious-prosecution claim. This underscores that federal courts apply an independent analysis of probable cause and malice. Also, **Smith v. Fla. Dep’t of Corr.**, 713 F.3d 1059, 1073 (11th Cir. 2013) held that demonstrating a clearly established right is a prerequisite for liability, emphasizing that prior case law must give officers “fair warning” their conduct was unlawful. All these cases, along with the classics (*Graham*, *Miranda*), shape the standards for claims of due process violation, excessive force, false arrest, Miranda breaches, and policy/supervisory misconduct.

¹ ² **Logan v. Zimmerman Brush Co.** | 455 U.S. 422 (1982) | Justia U.S. Supreme Court Center
<https://supreme.justia.com/cases/federal/us/455/422/>

³ ¹⁰ ¹¹ **ELEVENTH CIRCUIT GRANTS IMMUNITY FOR OFFICERS IN ARREST AND USE OF FORCE CASE - LLRMI - Police Training and Expert Services for Law Enforcement, Jails & Corrections, Insurance Pools, Risk Managers, and Attorneys**
https://www.llrmi.com/articles/legal_updates/eleventh-circuit-grants-immunity-for-officers-in-arrest-and-use-of-force-case/

⁴ ⁵ ¹³ ¹⁴ ²² **ELEVENTH CIRCUIT AFFIRMS IMMUNITY FOR DETECTIVE SUED FOR MALICIOUS PROSECUTION - LLRMI - Police Training and Expert Services for Law Enforcement, Jails & Corrections, Insurance Pools, Risk Managers, and Attorneys**
https://www.llrmi.com/articles/legal_updates/2025_graham_v_luke/

⁶ ⁷ **Graham v. Connor** | 490 U.S. 386 (1989) | Justia U.S. Supreme Court Center
<https://supreme.justia.com/cases/federal/us/490/386/>

⁸ ⁹ **Jones v. Ceinski, No. 23-12178 (11th Cir. 2025) :: Justia**
<https://law.justia.com/cases/federal/appellate-courts/ca11/23-12178/23-12178-2025-05-08.html>

¹² **Anthony Colon v. Wendell Smith, et al, No. 22-14106 (11th Cir. 2024) :: Justia**
<https://law.justia.com/cases/federal/appellate-courts/ca11/22-14106/22-14106-2024-08-22.html>

¹⁵ **Miranda v. Arizona** | 384 U.S. 436 (1966) | Justia U.S. Supreme Court Center
<https://supreme.justia.com/cases/federal/us/384/436/>

¹⁶ **Chavez v. Martinez** | 538 U.S. 760 (2003) | Justia U.S. Supreme Court Center
<https://supreme.justia.com/cases/federal/us/538/760/>

¹⁷ **Vega v. Tekoh (2022)** | Wex | US Law | LII / Legal Information Institute
[https://www.law.cornell.edu/wex/vega_v_tekoh_\(2022\)](https://www.law.cornell.edu/wex/vega_v_tekoh_(2022))

¹⁸ **Monell v. Department of Soc. Svcs.** | 436 U.S. 658 (1978) | Justia U.S. Supreme Court Center
<https://supreme.justia.com/cases/federal/us/436/658/>

¹⁹ **City of Canton, Ohio v. Harris** | 489 U.S. 378 (1989) | Justia U.S. Supreme Court Center
<https://supreme.justia.com/cases/federal/us/489/378/>

20 21 Connick v. Thompson | 563 U.S. 51 (2011) | Justia U.S. Supreme Court Center
<https://supreme.justia.com/cases/federal/us/563/51/>